

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CHARLES ELLISON,

Plaintiff,

- against -

THE CITY OF NEW YORK and
JOHN McLOUGHLIN,

Defendants.

-----X

Index No.

Plaintiff designates
Bronx County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
79 Hemlock Circle
Peekskill, NY 10566

County of Westchester

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 28, 2017

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff

CHARLES ELLISON

Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
JOHN McLOUGHLIN, c/o 47TH Precinct, Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CHARLES ELLISON,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
JOHN McLOUGHLIN,

Defendants.

-----X

Plaintiff, **CHARLES ELLISON**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned, and on
June 13, 2016, the plaintiff, **CHARLES ELLISON**, was and still is a
resident of the County of Westchester, State of New York.

2. That, at all times hereinafter mentioned, and on
June 13, 2016, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
June 13, 2016, the defendant, **JOHN McLOUGHLIN**, (hereinafter
referred to as "**McLOUGHLIN**"), was and still is a resident of the
State of New York.

4. That, the plaintiff, **CHARLES ELLISON**, has complied

with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim, served on August 26, 2016, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **CHARLES ELLISON**, testified at an oral examination pursuant to the General Municipal Law on August 24, 2017; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

5. That, on June 13, 2016, the plaintiff, **CHARLES ELLISON**, was in a motor vehicle on Schiefflin Avenue attempting to make a left turn onto Baychester Avenue, in the County of Bronx, City and State of New York.

6. That, the plaintiff, **CHARLES ELLISON**, was approached by an unmarked car, in which three (3) plain clothes police officers, agents, servants, and/or employees of the defendant and/or defendants had approached the vehicle operated by the plaintiff, **CHARLES ELLISON**, without probable cause, without reasonable cause and without justification.

7. That, the aforementioned individuals, had asked the plaintiff, **CHARLES ELLISON**, if the car in which he was operating as stolen, in which the plaintiff, **CHARLES ELLISON**, had replied that it was not.

8. That, the plaintiff, **CHARLES ELLISON**, had produced

identification for the aforementioned individuals, and/or other agents, servants, and/or employees of the defendant and/or defendants, and the plaintiff, **CHARLES ELLISON**, was thereafter ordered out of the vehicle by the aforementioned individuals.

9. That, the plaintiff, **CHARLES ELLISON**, was thereafter thrown to the ground, was punched, kicked, assaulted, battered, beaten, by the aforementioned individuals, or police officers, and/or other agents, servants and/or employees of the defendant and the defendants herein, for no reason whatsoever.

10. That, the plaintiff, **CHARLES ELLISON**, never resisted arrest, was thereafter handcuffed, and placed against his will, into a car operated by the aforementioned individuals, who were agents, servants and/or employees of the defendant and the defendants herein.

11. That, the plaintiff, **CHARLES ELLISON**, was taken to the 47th Precinct, against his will.

12. The plaintiff, **CHARLES ELLISON**, was taken to Central Booking.

13. The plaintiff, **CHARLES ELLISON**, was seen by a judge.

14. The plaintiff, **CHARLES ELLISON**, was injured as a result of the foregoing.

15. The plaintiff, **CHARLES ELLISON**, was caused to go to Criminal Court on several occasions.

16. All charges against the plaintiff, **CHARLES ELLISON**

were adjourned in contemplation of dismissal on May 16, 2017.

17. That, on June 13, 2016, the plaintiff, **CHARLES ELLISON**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

18. That, the plaintiff, **CHARLES ELLISON**, was assaulted/battered without justification and without cause and without excuse.

19. That, the assault/battery took place on Baychester Avenue and Schiefflin Avenue, in the County of Bronx, City and State of New York, and other locations wherein the plaintiff, **CHARLES ELLISON** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

20. That, at all times hereinafter mentioned and on June 13, 2016, and for sometime prior thereto, defendant, **McLOUGHLIN**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

21. That, the aforementioned assault and battery of the plaintiff, **CHARLES ELLISON**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

22. That, by reason of the foregoing, the plaintiff, **CHARLES ELLISON**, was injured; was rendered sick, sore, lame and

disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

23. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

24. That, by reason of the foregoing, the plaintiff, **CHARLES ELLISON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

25. That, the plaintiff, **CHARLES ELLISON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 24 with the same force and effect as if hereinafter more fully set forth at length herein.

26. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

27. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

28. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **McLOUGHLIN** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

29. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **McLOUGHLIN**, who was employed by the defendant, **THE CITY**.

30. That, by reason of the foregoing, the plaintiff, **CHARLES ELLISON**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

31. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the

defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

32. That, by reason of the foregoing, the plaintiff, **CHARLES ELLISON** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

33. That the plaintiff, **CHARLES ELLISON** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 32 with the same force and effect as if hereinafter more fully set forth at length herein.

34. That, on June 13, 2016, the plaintiff, **CHARLES ELLISON** , was caused to be falsely arrested and falsely imprisoned without probable cause.

35. That, the plaintiff, **CHARLES ELLISON** , was arrested without an arrest warrant.

36. That, the false arrest/false imprisonment took place on Baychester Avenue and Schiefflin Avenue, in the County of Bronx, City and State of New York, and other locations and wherein the plaintiff, **CHARLES ELLISON** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

37. That, the aforementioned false arrest and false imprisonment of the plaintiff, **CHARLES ELLISON** , was carried out

by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

38. That, the aforementioned false arrest and false imprisonment of the plaintiff, **CHARLES ELLISON** , was carried out by defendant, **McLOUGHLIN**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

39. That, by reason of the foregoing, the plaintiff, **CHARLES ELLISON** , was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

40. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

41. That, by reason of the foregoing, the plaintiff, **CHARLES ELLISON** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

42. The plaintiff, **CHARLES ELLISON** , repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 41, with the same force and effect as if hereinafter more fully set forth at length herein.

43. That the plaintiff, **CHARLES ELLISON** did not commit any illegal act, nor did the individually named defendant, **McLOUGHLIN**, have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

44. That at all times hereinafter mentioned, the defendant, **McLOUGHLIN** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

45. Defendant, **McLOUGHLIN**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **McLOUGHLIN** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps

or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

46. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **CHARLES ELLISON** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **CHARLES ELLISON** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **CHARLES ELLISON** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **CHARLES ELLISON** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

47. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant, **McLOUGHLIN**, and/or defendants, while acting under color of state law and within the scope of their employ.

48. That the deprivation of plaintiff's Constitutional

rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

49. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

50. That the deprivation of plaintiff, **CHARLES ELLISON's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

51. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

52. That the detaining of plaintiff, **CHARLES ELLISON** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

53. That the deprivation of plaintiff, **CHARLES ELLISON's** Constitutional rights was the result of the defendant, **McLOUGHLIN's** arrest of the plaintiff **CHARLES ELLISON** without probable cause.

54. That the deprivation of plaintiff **CHARLES ELLISON's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

55. That the deprivation of plaintiff, **CHARLES**

ELLISON's Constitutional rights was the result of the defendant, **McLOUGHLIN's** use of excessive force.

56. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **CHARLES ELLISON**.

57. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **CHARLES ELLISON** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

58. That, by reason of the foregoing, the plaintiff **CHARLES ELLISON** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

59. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard

for the safety of others, as well as having performed intentional acts.

60. That, by reason of the foregoing, the plaintiff, **CHARLES ELLISON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **CHARLES ELLISON** , demands judgment against the defendants, on the First, Second, Third, and Fourth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
August 28, 2017

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
CHARLES ELLISON
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEY'S VERIFICATION

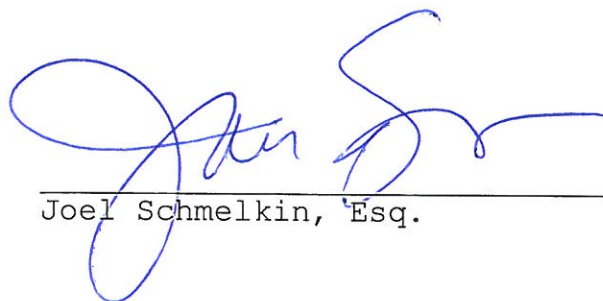
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

Joel Schmelkin, an attorney admitted to practice law in the State of New York, states, the following:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff because the plaintiff does not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
 August 28, 2017



Joel Schmelkin, Esq.

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CHARLES ELLISON,

Plaintiff,

-against-

THE CITY OF NEW YORK and JOHN McLOUGHLIN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Charles Ellison

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: August 28, 2017

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐
NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐
NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____, at _____ M.

20

M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

16 of 16

Office and Post Office Address, Telephone